TERMS & CONDITIONS — DRAFT SERVICE AGREEMENT

Beauty Services Marketplace

Standard terms governing the MVP build, Phase 2 add-ons and any maintenance engagement.

Between	*[CLIENT BUSINESS NAME]* ("Client")
And ("Provider")	Abdurrahman & Adnan — Technology Development & Maintenance Partners
Effective on	the earlier of signing or the M-0 advance payment.
Governing law / venue	*[STATE, INDIA]*
Read with	the Proposal and Quotation of *[DATE]*, which form part of this agreement.

> **Plain-language intent.** These terms exist to prevent the two things that damage freelance relationships most: *unclear scope* and *late-payment disputes*. They are deliberately balanced, not one-sided — please have your advisor review before signing.

1. Scope of work

Provider will deliver the MVP modules defined in Proposal §3–4 and costed in the Quotation §1. Any feature not listed — including all Phase 2 items — is out of scope until added by a written change request. Documentation (this set) and the agreed design define the boundaries; where they conflict, the signed change request prevails.

2. Timeline & milestones

Milestone dates in Proposal §6 are indicative and assume timely Client inputs. Go-live is not "due" until dependencies the Client owns are met (Section 8). Slippage caused by Client-side delay extends the schedule day-for-day and is not a breach by Provider.

3. Fees & payment

- Fees, schedule and taxes are in the Quotation. All amounts are exclusive of GST unless stated.
- Each milestone invoice is payable **net *[7]* days**. Work on the next milestone may pause until the prior invoice clears.
- Late payments accrue ***[1.5%]*/month** on the outstanding amount.
- The advance (M-0) is **non-refundable** once design/build has commenced.

4. Change requests

Any scope, design or effort change is raised as a written **Change Request** with an agreed impact on fee and timeline **before** work proceeds. Verbal or in-chat requests are not binding until confirmed. Out-of-scope work billed at *₹ [RATE]/hr* unless otherwise agreed.

5. Client responsibilities

Client will provide, on time and in usable form: brand assets, app-store & developer accounts, hosting/payment/SMS/WhatsApp accounts (Section 8), launch content, business decisions, and a **single point of contact**. Feedback and approvals are expected within ***[3]*** **working days** per milestone; longer delays move the timeline.

6. Intellectual property

- On **final payment in full**, Provider assigns to Client the delivered source code, design files and project-specific work product.
- Provider retains ownership of its **pre-existing tools, libraries and general know-how** (including the reusable auth/onboarding foundation), licensed to Client for use in this product.
- Third-party/open-source components remain under their own licences.
- Until final payment, all deliverables remain Provider property; Client holds an evaluation licence only.

7. Confidentiality

Both parties keep the other's confidential information private for ***[3]*** **years** and use it only to perform this agreement. This survives termination. Provider may reference the project generally in its portfolio unless Client opts out in writing.

8. Third-party services, limits & disclaimers

Client engages and pays third parties (hosting, app stores, SMS/WhatsApp gateways, payment providers) either directly or by reimbursement at actuals. Provider is not responsible for those services' availability, pricing changes, suspension or compliance obligations (e.g., gateway KYC, WhatsApp policy, data/consent rules). Provider's OTP code **expiry and max-attempt rules** follow the delivered design.

9. Warranty & support

- **Launch warranty:** *[30]* days post-launch, Provider fixes defects that fail to meet the agreed spec at no charge (excludes new features, third-party faults, and issues from Client/third-party changes).
- After warranty, support continues under the optional AMC (Quotation §3); otherwise on a time-and-materials basis.

10. Liability

- **Excluded:** indirect/incidental loss, lost profits, lost revenue or bookings, and business interruption — regardless of the cause of action.
- **Aggregate cap:** each party's total liability is limited to the **fees actually paid or payable** under this agreement.
- Nothing limits liability for fraud, wilful misconduct, or Client's payment obligations.

11. Termination

- Either party may terminate for **material breach** uncured within ***[14]*** **days** of written notice.
- Client may terminate for convenience on written notice; Provider invoices for all work completed plus committed third-party costs up to that date.
- On termination after full payment for completed milestones, Client receives the work product up to that point.

12. Independent contractor

Provider is an independent contractor, not an employee, agent or partner of Client, and is responsible for its own taxes and tooling.

13. Dispute resolution

The parties will first attempt good-faith resolution. Unresolved disputes go to the courts of ***[CITY, STATE]***, **India**. Governing law: the laws of India.

14. General

Entire agreement (with the Proposal & Quotation); amendments in writing; if a clause is unenforceable, the rest stands; no waiver by silence. Notices by email to the contacts on the cover.

Acceptance & signatures

For the Client	For the Provider
Name:	Name:
Signature:	Signature:
Date:	Date: